



SPONSOR: Rep. Yearick & Sen. Hocker & Sen. Pettyjohn
Reps. Collins, Dukes, Gray, Hensley, Hilovsky,
Jones Giltner, Morris, Postles, D. Short, Shupe,
Michael Smith, Spiegelman, Vanderwende; Sens.
Lawson, Richardson, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 92

AN ACT TO AMEND TITLE 7 OF THE DELAWARE CODE RELATING TO ENVIRONMENTAL CONTROL BY REPEALING THE DELAWARE ADVANCED CLEAN CAR PROGRAM UNDER REGULATION 1140 OF TITLE 7 OF THE DELAWARE ADMINISTRATIVE CODE AND ADOPTING THE DELAWARE LOW EMISSION VEHICLE PROGRAM.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subchapter II, Chapter 60, Title 7 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 6010A. Repeal of Delaware Advanced Clean Car Program and Adoption of Delaware Low Emission Vehicle Program.

(a) The amendments to Regulation 1140 of Title 7 of the Delaware Administrative Code adopted by the Department of Natural Resources and Environmental Control in Issue 6 of Volume 27 of the Delaware Register of Regulations (27 DE Reg 433) and effective on December 11, 2023, known as the Delaware Advanced Clean Car Program, are repealed.

(b) The repeal under subsection (a) of this section revives the version of Regulation 1140 of Title 7 of the Delaware Administrative Code in effect before December 11, 2023, known as the Delaware Low Emission Vehicle Program.

Section 2. Notwithstanding Subchapter II of Chapter 101 of Title 29 of the Delaware Code or any other law of this State to the contrary, the Registrar of Regulations shall publish in the next issue of the Delaware Register of Regulations to be published after the enactment of this Act all of the following:

(1) The version of Regulation 1140 of Title 7 of the Delaware Administrative Code in effect before December 11, 2023, known as the Delaware Low Emission Vehicle Program, as a final regulation.

(2) An order from the Registrar of Regulations noting that this Act is the basis for the Registrar's publication under paragraph (1) of this Section.

19 Section 3. Section 1 of this Act takes effect 10 days after the date of the publication in the Register of Regulations
20 of the amended version of Regulation 1140 of Title 7 of the Administrative Code required under Section 2 of this Act.
21 Section 2 and 3 take effect on the enactment of this Act.

SYNOPSIS

This bill repeals the Delaware Advanced Clean Air Program and adopts the Delaware Low Emissions Program thereby terminating the Electric Vehicle Mandate.